

OPINION

As a career federal prosecutor I can tell you the allegations of widespread voter fraud are false

DOJ has not prosecuted a single case of voter fraud in Southern California.



Getty Images

HARRISBURG, PENNSYLVANIA – NOVEMBER 05: Dozens of people calling for stopping the vote count in Pennsylvania due to alleged fraud against President Donald Trump gather on the steps of the State Capital on November 05, 2020 in Harrisburg, Pennsylvania. The activists, many with flags and signs for Trump, have made allegations that votes are being stolen from the president as the race in Pennsylvania continues to tighten in Joe Biden's favor. (Photo by Spencer Platt/Getty Images)



By **PHILLIP HALPERN**

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Even though the dust has mainly cleared since the election, the media somehow remain awash with articles, tweets and posts alleging widespread voter fraud. Given the ceaseless persistence of these baseless claims, it is little wonder that the majority of Republicans still believe that the 2020 presidential election was, in fact, marred by massive fraud. To these voters, the question becomes: Why should they doubt President Donald Trump's statements that "millions of people voted illegally" and that he "won the election!?"

As a career federal prosecutor serving under four Republican and two Democratic administrations, I have almost four decades of actual experience investigating and prosecuting political corruption and election-related offenses. As such, I am in an excellent position to tell these voters about the actual facts surrounding claims of voter fraud. And, the simple truth is: During this period, the United States Department of Justice has not prosecuted a single case of voter fraud in the Southern District of California. To repeat: not a single case.

The absence of viable voting fraud cases is all the more telling as federal prosecutors have been able to prosecute multiple campaign finance and political corruption cases. Indeed, if a viable voter fraud case could be found, the department would have jumped at the chance of prosecuting any such offenders.

Yet skeptical readers may still wonder if Southern California is just a rare fair-voting zone, while other areas of the country — you know, those ones where voters expected their side to win — are rife with voter fraud. Not so. A review of this phenomenon from sources as diverse as the conservative [National Review](#) (“Do Not Buy Bad Arguments about Election Fraud”) to the progressive [Brennan Center for Justice](#) (“The Truth about Voter Fraud”) reveals the complete absence of any type of widespread or systematic voter fraud. The same is true from an examination of voter fraud cases actually charged.

Although it is true that individuals have defrauded the election system in a handful of cases nationwide, a review of actual voter fraud cases show that they are – by any measure – exceedingly rare. Indeed, most reported incidents of voter fraud are actually attributable to other problems, such as clerical errors or bad data-matching practices. Studies of prior elections have found incident rates between [0.0003 percent](#) and 0.0025 percent. In other words, the Justice Department has found only extremely limited occurrences of misconduct, none of which would alter an election’s outcome.

In fact, the Justice Department – under President George W. Bush – formed a specialized unit dedicated specifically to uncovering instances of federal-election fraud in the 2002 and 2004 elections. Yet this investigation conducted by a Republican administration was able to document that only 0.00000013% of the ballots cast were fraudulent. Less than 1 in 10 million. To put this in perspective, if you contract COVID-19 in the United States your chances of dying are presently about 1 out of 50. In other words, about 200,000 times more likely. Paradoxically, though, it appears that many of the people screaming “voter fraud” and “Stop the steal” are not concerned with the actual odds as they don’t even wear masks.

Similarly, the Presidential Advisory Commission on Election Integrity established by President Trump (to investigate his claim that he actually won the 2016 popular vote because millions of people voted illegally) disbanded without being able to present in court any significant evidence of fraudulent voting. This Republican Commission was vice-chaired by then-Kansas Secretary of State and voting-fraud hardliner Kris Kobach, who was able to document only 14 instances of voter fraud out of 84 million votes cast in 22 states. Getting struck by lightning is about five

Despite unprecedented turnout, the 2020 election’s documented voter fraud cases could well be fewer than in past elections. Just last month, President Trump’s then-handpicked director of the Cybersecurity and Infrastructure Security Agency, Chris Krebs (a registered Republican), announced that this “election was the most secure in American history,” with “no evidence that any voting system deleted or lost votes, changed votes, or was in any way compromised.”

Similarly, election officials in dozens of states representing both political parties have confirmed that no evidence exists that fraud or other irregularities played a role in the current presidential election. It is, therefore, unsurprising that in mounting dozens of unsuccessful legal challenges (so far), the Trump campaign has been unable to find a single judge of either party to support its claims of widespread voter fraud. In fact, despite Rudy Giuliani’s constant cries of fraud during press conferences, Trump’s lead legal counsel admitted in federal court that their lawsuit was “not a fraud case.”

Only yesterday, Attorney General William Barr — one of the President’s staunchest supporters — admitted to the Associated Press that despite his best efforts he had uncovered no widespread voting fraud that could have affected the results of the election. In doing so, the Attorney General reluctantly came to the same conclusion previously reached by Trump’s FBI Director Christopher Wray, who testified before Congress that his agency had observed absolutely no evidence of a “coordinated national voter fraud effort.”

Americans are, of course, still free to believe that massive voter fraud occurred and that Donald Trump really won the election. But they’re not entitled to their own facts. And, it is a fact beyond dispute that the numerous allegations of widespread voter fraud are plainly false. As such, they are part of a dangerous and unfounded conspiracy theory that is corroding the very foundation of our democracy.

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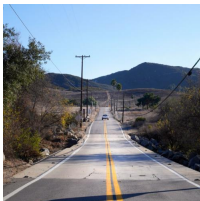
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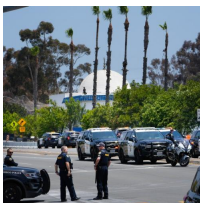
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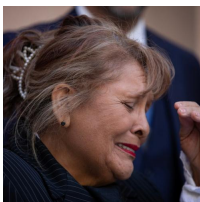
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